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LINE 12

26-CIV-05795

REDWOOD 31 CENTER STREET LLC VS. WING ON CONSTRUCTION, INC.

REDWOOD 31 CENTER STREET LLC
WING ON CONSTRUCTION, INC.

PETER PROWS

PETITION FOR ORDER RELEASING MECHANIC'S LIEN AND REQUEST FOR ATTORNEY'S FEES

TENTATIVE RULING:

Petitioner Redwood 21 Center Street LLC's unopposed Petition for Order Releasing Mechanic's Lien is GRANTED pursuant to Civil Code section 8460, subdivision (a), as follows:

Petition to Release Mechanic's Lien

The owner of property affected by a mechanic's lien may petition for release of the lien upon the failure to timely enforce the lien by prosecution. (*Solit v. Tokai Bank, Ltd. New York Branch* (1999) 68 Cal. App. 4th 1435.) A mechanic's lien claimant is required to commence an action to enforce the lien within 90 days after recordation of the claim of lien or the claim of lien expires and is unenforceable. (Civ. Code, § 8460, subd. (a).) At least ten (10) days before filing the petition for release of lien, the owner of the affected property must give the lien claimant notice demanding that the claimant execute and record a release of the claim of lien in accordance with notice requirements for works of improvement and stating the grounds for the demand. (Civ. Code, §§ 8100 to 8119, and 8482.) A copy of the petition and notice of the hearing must be served in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant at the statutorily authorized location at least fifteen (15) days before the hearing. (Civ. Code, § 8486.) Petitioner has the initial burden of evidence showing compliance with the service and date for hearing requirements, while the lien claimant has the burden of proof as to the validity of the lien. (Civ. Code, §8488, subd. (a).)

This action pertains to property owned by Petitioner Redwood 21 Center Street LLC, with the former street address, 31 Center Street (Assessor's Parcel Number 053-336-080) (the "Subject Property.") The Subject Property has been subdivided into seven street addresses.

Respondent Wing On Construction, Inc. filed a Claim of Mechanic's Lien pertaining to the Subject Property on or about July 10, 2024 as Document No. 2004-036326 in the amount of \$209,981.79. (Verified Petition, ¶¶6-7, Exh. B.) The lien claim was paid to Respondent in the amount of \$209,981.79 in principal and \$11,901.00 in interest. (*Id.*, at ¶9, Exh. C.) Respondent did not bring an action to enforce the lien within 90 days of recordation. (*Id.*, at ¶12.) Petitioner sent Respondent a written demand to release the lien by certified mail on June 18, 2026 and Respondent did not respond within 10 days, nor at all as of July 24, 2026. (*Id.*, ¶¶10-11, Exh. D.) The Petition was served by certified mail, return receipt requested, on July 28, 2026. (Proof of Service filed July 29, 2026.) No Opposition has been filed.

The Petition is accordingly GRANTED.

Attorney's Fees

The prevailing party on a petition to release a mechanic's lien is entitled to reasonable attorney's fees. (Civ. Code, § 8488, subd. (c).) Petitioner requests an award of \$8,800.00 in attorney's fees for sending the letter to Respondent demanding a signed Release, preparing the Petition, and \$550.00 in anticipated fees for attending the hearing. (Verified Petition, ¶17.) The request for an award of fees is not supported by a declaration stating how much time was expended on each task, or at what hourly rate. The anticipated fees for attending the hearing do not appear necessary because the Petition is unopposed, but if the tentative ruling is contested the court will award fees for the hearing. The brief three page Petition with four attachments is straightforward. Attorney's fees are awarded in favor of Petitioner and against Respondent Wing On Construction, Inc. in the reduced amount of \$4,500, representing eight and one-half hours of work reasonably expended at a reasonable hourly rate of \$500/hr., to be paid within 30 days of notice of entry of this order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Petitioner shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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